DIVISION BENCH ITEM NO.115

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CA NO.28/2023 IN CP (CAA) No.05/ALD/2023
IN CA (CAA) No.9/ALD/2022 (Second Motion)

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 15th February, 2024

Attendance-Cum-Order Sheet of the Hearing.

NAME OF THE COMPANY	**EPACK COMPONENTS PVT. LTD. WITH EPACK DURABLE PVT. LTD.**
UNDER SECTION	**230/232 OF COMPANIES ACT, 2013**

COUNSEL APPEARED THROUGH PHYSICAL/ VIRTUAL HEARING:

Sh. Saurabh Kumar, Adv. *: For the Petitioner Company*

Sh. Shivendra Bahadur Singh, CGSC *: For the ROC*

Sh. Niraj Kumar Singh, Proxy for Sh. Gaurav Mahajan, Sr. S.C. *: For the I.T. Deptt.*

Sh. Ajit Kumar Singh, AOL *: For the O.L. Alld.*

ORDER

Ld. Counsels representing the respective parties are present through VC.

1. As per the previous orders, the Income Tax Department has repeatedly sought time for filing its report. On the previous date of hearing i.e. 1st February, 2024 vide para 1 also, the time was again sought on behalf of the Income Tax Department for a period of 10 days to file its report, however till today, no report has been filed.

2. Faced with this situation, the Ld. Counsel representing the Income Tax Department seeks and is granted one week time to file the report.

-Sd- ***-Sd-***

3. Let the same be the done by serving advance copy to the Ld. Counsel representing Petitioner Companies.

4. It is made clear, that this would be the last opportunity granted, in case if the reply/report is not filed by the Income Tax Department on or before the aforesaid date, the right to file reply would be struck off without passing any further order, in that regard.

5. The matter is adjourned for 26th February, 2024, to come up higher on the board.

-Sd- ***-Sd-***

(Ashish Verma) **(Praveen Gupta)**
Member (Technical) **Member (Judicial)**

15th February, 2024

Bipul Kumar Tiwari
(Stenographer)